



Notification Waiver Determination

MA Financial Group (Redcape Fund) – The Entrance Social Club

Acquisition	MAHF Custodian Pty Ltd, as custodian for RGM TT Pty Ltd (as trustee for The Entrance Hotel Sub Trust) and Redcape Hotel Group Pty Ltd, proposes to acquire 100% of the freehold land interest, buildings, licences and business assets of The Entrance Social Club located in The Entrance, NSW, as described in the transaction documents provided as part of the application (the Acquisition). MA Financial Group Limited (MA Financial) applied for a notification waiver in respect of the Acquisition.
Determination	The Australian Competition and Consumer Commission has determined under section 51ABV(1)(a) of the <i>Competition and Consumer Act 2010</i> (Cth) that the Acquisition is not required to be notified.
Date of determination	30 April 2026

Parties to the Acquisition	The acquirer, MAHF Custodian Pty Ltd, is the custodian for RGM TT Pty Ltd (as trustee for The Entrance Hotel Sub Trust) and Redcape Hotel Group Pty Ltd. The acquirers are part of MA Financial's Redcape Fund, which owns and operates community pubs and hotels. The Redcape Fund portfolio currently has 34 pubs and hotels in NSW, Queensland and Victoria. The target, The Entrance Social Club, is a community pub and hotel offering food, beverage, accommodation, gambling and entertainment, which is located in The Entrance, NSW. It also operates a bottle shop, being 'Bottlemart'. The parties both supply on-premises and take-away packaged liquor, dining, gambling, and accommodation services.
Explanation for determination	In making this notification waiver determination, the Australian Competition and Consumer Commission (the ACCC) has considered the information provided with the notification waiver application and had regard to the factors in section 51ABV(2)(b) of the <i>Competition and Consumer Act 2010</i> (Cth) (the Act). Based on the information provided in the application, the ACCC considers that the Acquisition is unlikely to give rise to any material lessening of competition. In particular: there is no local horizontal overlap between the Redcape Fund and The Entrance Social Club in the supply of on-premises or takeaway packaged liquor, dining, gaming or accommodation services in The Entrance area or the surrounding area

	b. there are alternative suppliers of on-premises and takeaway packaged liquor, dining, gaming and accommodation services at the local and regional level. The ACCC has also had regard to the likelihood that, if the Acquisition were put into effect, the notification thresholds determined under section 51ABP(1) of the Act would apply. While the ACCC considers that the notification thresholds are likely to be met, given that material competition concerns are unlikely to arise, the ACCC has determined that the Acquisition is not required to be notified. The ACCC considers that the determination is consistent with the object of the Act and the interests of consumers in promoting competition. For more information about the ACCC's approach to considering notification waiver applications and to assessing competition effects more generally, see the ACCC's interim guidance on notification waivers and merger assessment guidelines.
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**Determination made by Commissioner Williams pursuant to a delegation under section 25(1)
of the Act**